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The quest for order among Awlad Ali of the Western Desert of Egypt

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In assessing the intention and consequently the amount of the traditional bloodmoney to be paid, the behavior of the offender is judged according to a traditional standard of reasonableness. In the case of the curious neighbor, Muftah, in his attempt to evade the payment of the full bloodmoney, presented an elaborate account of his neighbor's actions including the provocative statements that the latter had said, the jokes, and even the insults he had directed against Muftah. His attempt was to show that throwing a small rock at his neighbor was not an unreasonable behavior considering the provocations of that neighbor whose behavior was itself unreasonable. Although the victim's behavior was unreasonable, the response of Muftah to the provocations of his neighbor was also considered as unreasonable. He could have followed the traditional means of asking a third party to interfere and prevent the neighbor from continuing his insults. Instead, Muftah took the direct and unreasonable response which eventually led to the death of Selouma. It is that element of reasonableness that led to the reversal of the original settlement in the case of the startled shepherd (Case #4). When considering a certain behavior in the context of reasonableness, the mediators draw not only upon the immediate facts of the case under consideration, but also upon the careful inquiry into the long history of interrelations  173 between the parties involved. The relative position of both the offender and the victim and their relationship to one another is taken into account. What is reasonable behavior in one case may not be so in another. Past disputes are taken as indications of the present situation, although they may not be directly related to the present dispute.

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